alien friends "home whenever the king sees occasion." 1 Commentaries on the Laws of England 252 (1765). And, at the time of ratification, Framers of the Constitution argued that the President would have the same power. See *Sessions*, 584 U. S., at 218 (collecting sources).

Congress, for its part, has no enumerated power to require the President to bring certain aliens into the country. The Constitution grants Congress the power to "establish an uniform Rule of Naturalization." Art. I, § 8, cl. 4. But, the class members in this case are not naturalized or even on the path to naturalization. The Necessary and Proper Clause, Art. I, § 8, cl. 18, likewise does not give Congress this power. Congress may pass laws "which shall be necessary and proper for carrying into Execution" its powers and those of the other branches of the Federal Government. *Ibid.* But, a law is not "proper" in this sense if it "purports to direct another branch's exercise of its power," or, at a minimum, "takes one of those actions *and* the branch to which the power is allocated objects to the action." *Zivotofsky* v. *Kerry*, 576 U. S. 1, 50 (2015) (THOMAS, J., concurring in judgment in part and dissenting in part). So, any statute that forced the President to allow aliens to cross the border against his will would appear to exceed Congress's enumerated powers, and a court could not enforce it against the President.

Page Proof Pending Publication

JUSTICE SOTOMAYOR, with whom JUSTICE KAGAN and JUSTICE JACKSON join, dissenting.

Since 1917, Congress has required immigration officers to inspect noncitizens who arrive at ports of entry to determine whether they may enter the United States. Since 1980, Congress has allowed noncitizens who are fleeing persecution in their home country to apply for asylum as part of this inspection process. Congressional statutes lay out a mandatory set of procedures to guide this process. A noncitizen who "arrives in the United States (whether or not at a desig-

nated port of arrival . . .)" and seeks admission "shall be inspected by immigration officers," 8 U. S. C. §§ 1225(a)(1), (3), and "may apply for asylum," § 1158(a)(1). If a noncitizen who "is arriving in the United States" lacks valid travel documents, the officer "shall order [her] removed," unless she conveys an intention to apply for asylum or a fear of persecution, which in turn requires the officer to "refer" her for further processing of her asylum application. § 1225(b)(1)(A). This system is designed to ensure that the Government processes each person seeking to come into the United States to determine who should be let in, who should be turned away, and who should be allowed to apply for asylum.

The Court today holds that the Executive Branch may circumvent all these mandatory procedures by having U. S. immigration officers stand at the border and physically block noncitizens from setting a foot onto U. S. soil. They may do so even if the asylum seeker is at the threshold of a port of entry designated to receive all noncitizens who seek entrance into the country. Even if the port of entry has ample capacity to inspect that person, including an available asylum officer trained to process asylum applications. Even if the asylum seeker is certain to be persecuted, or killed, if she is turned away.

Page Proof Pending Publication

The Court's illogical interpretation is driven almost entirely by a fixation on a single word: "in." Words, however, must be read in context and with attention to how they fit into the statute as a whole. The majority ignores the statutory context and history, not to mention the longstanding position of the Executive Branch, all of which show that any noncitizen arriving at our doorstep and seeking admission must be inspected and allowed to apply for asylum, regardless of whether her foot has crossed the threshold. Because the Court today blesses the Executive Branch's decision to slam the door shut on all who are fleeing persecution, despite the detailed inspection and asylum system that Congress enacted and commands, I respectfully dissent.

I

A proper understanding of this case requires appreciating the reality of the challenged "metering" policy, the nature of the respondents' legal challenge, and the Ninth Circuit's decision below.

A

The United States-Mexico border is dotted with designated ports of entry. Over 20 ports of entry are designated as "Class A," meaning they are designated to "'process all aliens applying for admission into the United States.'" App. 193, 215. These ports abut the border and include vehicle lanes, pedestrian walkways, and an arrival hall, all staffed with Customs and Border Protection (CBP) officials. Where the Rio Grande marks the border between the two countries, arrival halls are generally at the north end of a bridge spanning the river (with the border marked by a plaque on the bridge near the river's midpoint). At land portions of the border, the border is marked by turnstiles on the road leading to the arrival hall.

Page Proof Pending Publication

Before 2016, pedestrians seeking asylum at a port of entry, like any other traveler seeking to enter the United States, would typically pass into U. S. territory (by bridge or through the turnstile), enter an arrival hall, and walk up to one of several desks staffed by CBP officials. A CBP officer would then review their travel documents, a process known as "inspection," and either admit them into the United States or send them to another area for further processing. For example, a pedestrian with a valid visa might be admitted immediately, whereas a pedestrian without valid travel documents might be referred for further inspection under the expedited-removal process. See § 1225(b)(1)(A)(i) (stating that the expedited-removal process applies to those who are "inadmissible under section . . . 1182(a)(7)," which renders those without valid documents inadmissible). During this process, pedestrians could also ask to fill out an asylum appli-

cation and would be forwarded to an inspection area for further processing.

In May 2016, this process began to change. Initially responding to a surge of increased migrant arrivals at a single port of entry in Southern California, CBP officials at that facility for the first time instructed arriving migrants to turn back into Mexico and return to the port at certain times for appointments. Soon, though, this "metering" system spread to other ports of entry along the southern border, with officials turning away all individuals without valid travel documents, but now without identifying any future time for asylum proceedings. In this early period of metering, asylum seekers often stepped onto U. S. soil (sometimes reaching arrival halls and CBP desks) before being turned back to Mexico. CBP later decided, however, that because of its statutory obligations, it could not send such individuals back to Mexico without processing them for asylum. Instead, CBP began directing officials to block asylum seekers from entering the United States "at 'the actual boundary line,'" which meant sending officials out of arrival halls, to bridges, and past turnstiles, where they could "sto[p] people right before they crossed the border." *Al Otro Lado* v. *Executive Office for Immigration Review*, 138 F. 4th 1102, 1110 (CA9 2025).

Page Proof Pending Publication

Gradually, the Government formalized this system into a "metering policy." First, in November 2016, the Department of Homeland Security (DHS) approved the practice, and CBP authorized ports of entry to "implement metering based on 'what [worked] best operationally and whether it [was] required on any given day or [at] any specific location.'" *Ibid.* (alterations in original). Then, in formal guidance issued in 2018, CBP authorized officials across the entire southern border to "'meter the flow of travelers at the land border,'" meaning that they could "'operate physical access controls at the borderline'" and "'may not provide tickets or appointments or otherwise schedule any person for entry.'"

Ibid. Once a traveler was "'in the United States,'" the guidance provided that "'he or she must be fully processed.'" *Ibid.*

The stated purpose of the Government's metering policy, consistent with its origin, was to manage CBP "'resources'" and respond to capacity limitations at ports of entry. *Ibid.* Over time, however, it became clear that the metering policy had little to do with capacity issues. According to a report by the Office of the Inspector General of DHS (OIG) issued in 2020, CBP often invoked lack of capacity as a justification for metering "regardless of the port's actual capacity and capability," including while facilities sat empty. App. 397, 408; see *id.*, at 221 (chart showing significant excess detention capacity even while metering was in effect). For some ports, detention facilities "were completely empty" 80% of the time during which they were turning away asylum seekers under the metering policy. *Id.*, at 192. Still, as a CBP whistleblower would later testify, officers at ports on the southern border were "instructed to lie to people" by telling them "that the port was currently at capacity[,] and turning them back," when in fact the relevant facility retained meaningful capacity to process asylum seekers. *Id.*, at 158–159.[1] The OIG report also found that CBP "redirected" asylum seekers "to other port locations," which "contravene[d] CBP's longstanding practice to process all aliens at a 'Class A' port of entry." *Id.*, at 378. "[T]he ports to which CBP staff redirected" people "range[d] from a few miles to more than 30 miles away," "[o]ften . . . required traversing difficult desert terrain," and "potentially placed undocumented aliens at risk of encountering criminals who may exploit them." *Id.*, at 397. "Moreover, because CBP officers [did] not generally ask migrants where they [we]re from before redirect-

Page Proof Pending Publication

[1] Other times, it seems that CBP officials affirmatively manufactured capacity problems to justify turning back asylum seekers, including by "intentionally remov[ing] seats" in arrival halls in order to reduce the processing capacity at certain ports of entry. App. 176.

ing them to another port, Mexican nationals seeking asylum" were redirected and forced to "remain in and travel through the very country in which they claim[ed] they [we]re subject to persecution." *Id.*, at 398–399.[2]

Soon, the metering policy created dire humanitarian conditions at the border. As CBP turned back more and more asylum seekers who had traveled treacherous distances to reach that point, makeshift camps sprung up on the Mexican side of the border, with tens of thousands of those turned away waiting days, then weeks and months, for asylum processing that often never took place. See Brief for Amnesty International USA et al. as *Amici Curiae* 5–6. In addition to "lack[ing] adequate food and shelter," those turned away under the metering policy also found themselves subject to the very "persecution and crime" they were fleeing. 138 F. 4th, at 1110. One woman who had fled Honduras after receiving death threats from gang members was beaten, cut, and knocked unconscious by an unknown man after being turned back from a port of entry. Brief for Amnesty International USA et al. as *Amici Curiae* 11. Another asylum seeker who was turned back at a port three times was later raped in the presence of her child. *Id.*, at 9. Those living in migrant camps were subjected to break-ins, robberies, and assaults, "'fac[ing] serious harm at the hands of criminal organizations, including kidnapping, extortion, physical violence, and sexual assault.'" *Id.*, at 7–8. Some were "murdered in Mexico while waiting for an opportunity to be processed by U. S. officials." 138 F. 4th, at 1110.

Page Proof Pending Publication

Desperate to flee these conditions and secure the opportunity to apply for asylum, "[s]ome attempted to reach U. S. soil by other means," including by attempting to cross the border between ports of entry by trekking through deserts or swimming across the Rio Grande. *Ibid.* Often, these ef-

[2] Some CBP officials, including the union representative for the Tecate port of entry, "expressed concern about the legality of the redirection practice." *Id.*, at 396.

forts had tragic ends. One couple that grew discouraged after a month of waiting in a camp near the border decided to cross the river and ask for asylum once they reached U. S. soil, but they were caught in a swift current and drowned. App. 235. Another woman also drowned, along with her 2-year-old son, after she gave up waiting in a tent camp and attempted to swim across the river. *Ibid.*; see 138 F. 4th, at 1110 (describing other "young children" that "tried to swim across the Rio Grande River and drowned"). Hundreds of others have met a similar fate, and many more died crossing the desert along the southern border, all making 2020 and 2021 some of the "deadliest year[s] for migrant crossings" in various regions of the southern border.[3]

B

In light of these circumstances, respondents brought this lawsuit under § 706(1) of the Administrative Procedure Act, which provides that a court shall "compel agency action unlawfully withheld or unreasonably delayed." 5 U. S. C. § 706(1). Respondents contended that CBP has a mandatory duty under 8 U. S. C. §§ 1225(a) and 1158(a)(1) to inspect, and to process asylum applications from, noncitizens who arrive at a port of entry and that CBP's metering policy unlawfully withheld that mandatory duty. The Government raised two counterarguments: first, that these statutes do not impose any duty to inspect or process asylum seekers if they have not stepped foot across the border; and second, that even if this duty exists, the metering policy did not constitute "unlawful withholding" of that duty.

Page Proof Pending Publication

[3] See Human Rights Travesty: Biden Administration Embrace of Trump Asylum Expulsion Policy Endangers Lives, Wreaks Havoc, Human Rights First 21 (Aug. 2021), https://humanrightsfirst.org/wpcontent/uploads/2021/10/HumanRightsTravesty_Final-1.pdf (archived at https://perma.cc/UP3Z-LUBS) (citing 107 migrants who drowned crossing a single stretch of the Rio Grande in 2021); see *ibid.* (explaining that the Government's metering policy "pushed desperate people fearing for their lives to cross between ports of entry").

The Ninth Circuit agreed with respondents on both points. 138 F. 4th, at 1113. First, it held that § 1225(a) requires the Government to inspect "noncitizen[s] stopped by U. S. officials at the border" and that § 1158(a)(1) requires allowing such noncitizens to apply for asylum. *Id.*, at 1118–1119. Second, it held that the metering policy constituted "withholding of agency action," as opposed to delay of agency action, because "border officials turned away noncitizens without taking any steps to keep track of who was being turned away or otherwise allowing them to open asylum applications." *Id.*, at 1122. In other words, the policy constituted a "wholesale refusal to carry out a mandatory duty," which "le[ft] the responsibility to try again in each noncitizen's hands." *Ibid.* The panel further explained that the difference between withholding and delay of a mandatory duty "is important" because "[i]f an agency withholds a required action, it violates § 706(1) regardless of its reason for doing so," but "if an agency delays a required action, it violates § 706(1) only if the delay is 'unreasonabl[e].'" *Id.*, at 1121. Thus, the panel emphasized, the Government retains "wide latitude and flexibility to carry out its duties at the border" and "[e]ven minimal steps by the Government, such as implementing and following a waitlist system or initiating the asylum process, would shift the § 706(1) analysis of any challenge from the withholding category into the delay category." *Id.*, at 1123. Because "the Government in this case did not take any such steps," however, the metering policy constituted unlawful withholding of a mandatory duty. *Ibid.*

The implication of the Ninth Circuit's decision, importantly, is not that the Government must instantaneously inspect and process asylum seekers at the border. All it stands for is that the Government cannot withhold that duty altogether or unreasonably delay it. All the Government was required to do under the Ninth Circuit's decision was to process asylum seekers in a reasonable time.

Page Proof Pending Publication

II

The question before this Court is whether §§ 1225(a) and 1158(a)(1) require the Government to inspect, and to process asylum applications from, noncitizens who arrive at ports of entry but who have not yet stepped across the border. The majority says that they do not, concluding that a noncitizen who walks up to the threshold of a port of entry and is blocked by a CBP officer from stepping foot across the border is not someone who "arrives in the United States" and has not therefore triggered these obligations.

The majority's conclusion focuses almost exclusively on the word "in" within the phrase "arrives in the United States." If that were all this case were about, the majority might have the better of the argument. Statutory interpretation, however, requires much more. "'It is a fundamental canon of statutory construction that the words of a statute must be read in their context and with a view to their place in the overall statutory scheme.'" *Sturgeon* v. *Frost*, 577 U. S. 424, 438 (2016). Properly read in context, the phrase "arrives in the United States" encompasses noncitizens who are in the process of arriving, regardless of where their feet are. This construction comports with the plain text of §§ 1225(a) and 1158(a)(1), the context clues within those provisions, the usage of the terms "arrives" and "arriving" in neighboring statutory provisions, and the consistent interpretation of this phrase in federal regulations. It gives meaning to the "arrives in" clause rather than rendering it wholly superfluous. It avoids the anomalous results of incentivizing illegal border crossings and vesting limitless discretion with immigration officers to ignore their mandated duties. Finally, it accords best with the statutory and legislative histories of both statutes, which show that Congress has long required inspection of all noncitizens seeking entrance at the border and intended such noncitizens to be allowed to apply for asylum.[4]

Preliminary Print Pending Publication

[4] Contrary to the majority's assertion, the "centerpiece" of this dissent is not an "impassioned" argument about the prudence of the metering policy. *Ante*, at 266, n. 5. The truth, based on the summary judgment rec-

A

1

Start with the full language of the statutes at issue. The inspection mandate, § 1225(a)(1), first defines an "applicant for admission" as "[a]n alien present in the United States who has not been admitted or who arrives in the United States (whether or not at a designated port of arrival . . .)." Section 1225(a)(3) then states that "[a]ll aliens . . . who are applicants for admission or otherwise seeking admission or readmission to or transit through the United States shall be inspected by immigration officers." The asylum statute, § 1158(a)(1), repeating the definition from § 1225(a)(1), requires that "[a]ny alien who is physically present in the United States or who arrives in the United States (whether or not at a designated port of arrival . . .), irrespective of such alien's status, may apply for asylum in accordance with this section or, where applicable, section 1225(b)," the expedited-removal provision.

Page Proof Pending Publication

All agree that to "arrive" means "to reach a destination." See, *e. g.*, Merriam-Webster's Collegiate Dictionary 64 (10th ed. 1996); *ante*, at 268–269 (citing additional dictionaries). Both statutes also use the present tense, "arrives," suggesting that these provisions cover those who are in the process of "arriving," not just those who have already "arrived." See *United States* v. *Wilson*, 503 U. S. 329, 333 (1992) (verb tense "is significant in construing statutes"). As the majority, the Government, and respondents all agree as well, the phrase "arrives in the United States" is coterminous with the phrase "arriving in the United States," which is used in the nearby expedited-removal provision in § 1225(b). See *ante*,

---

ord, is that the metering policy incentivized illegal border crossings, was used when ports had capacity, and resulted in tragic consequences for migrants. See *supra*, at 286–290. Even so, if this policy were authorized by the statutes Congress enacted, then I would not be in dissent. As described at length in this opinion, however, the proper interpretation of §§ 1225(a) and 1158(a) reflects that Congress did not authorize such a policy.

at 274–275 (explaining that expedited removal applies to "arriving aliens" and corresponds to the "arrives in the United States" clauses of §§ 1225(a)(1) and 1158(a)(1)); Brief for Petitioners 23 (discussing §§ 1225(b) and (c)).

It is natural to say that asylum seekers are arriving, *i. e.*, reaching their destination, when they come to the threshold of a port of entry because that is where they can present themselves to an immigration official and apply for asylum. In this context, it does not make sense to say an asylum seeker's arrival depends on whether she has taken a step across the border or her foot has not yet landed, or whether her hand is outstretched across the threshold or is still by her side; she is arriving in the United States for purposes of seeking admission.

The analysis, of course, does not stop there because "statutory construction" requires "reviewing text in context." *Pulsifer* v. *United States*, 601 U. S. 124, 133 (2024). Here, context clues within §§ 1225(a) and 1158(a)(1) reinforce respondents' interpretation. To start, both statutes suggest, in a parenthetical, that one of the ways in which a noncitizen may "arriv[e] in the United States" is by being "at a designated port of arrival." §§ 1225(a)(1), 1158(a)(1). This shows that noncitizens "arriv[e] in" the country when they are "at" the port, such as when they are standing on the bridge presenting themselves to a border official.

Page Proof Pending Publication

Turn next to the statutory provisions that surround § 1225(a)(1). Section 1225(a)(3), for example, requires inspection not only of "applicants for admission" (the term defined in § 1225(a)(1)), but also of all noncitizens "otherwise seeking admission or readmission to or transit through the United States." That "otherwise" clause plainly includes those who are walking up to the border "seeking" to enter the country even if they have not yet crossed the threshold. Another neighboring provision, § 1225(a)(2), requires inspection of "[a]n arriving alien who is a stowaway" and allows stowaways to "apply for asylum under section 1158," even

though stowaways are not eligible to apply for admission and generally are not permitted to "land in the United States," § 1231(d)(2)(B). These provisions clearly suggest that § 1225(a)'s and § 1158(a)(1)'s use of the term "arrives in the United States" is meant to include all noncitizens in the process of arriving, even if they have not yet stepped foot into U. S. territory.

Notably, respondents' interpretation of §§ 1225(a) and 1158(a)(1) has been the consistent interpretation adopted by federal regulations since the current language of these provisions was enacted in the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 (IIRIRA). These Executive Branch interpretations are "especially useful in determining the statute's meaning" because they were "issued contemporaneously" with IIRIRA and "have remained consistent over time." *Loper Bright Enterprises* v. *Raimondo*, 603 U. S. 369, 394 (2024). In 1997, six months after IIRIRA was enacted, the Government promulgated a regulation defining "arriving alien" to include any noncitizen "who seeks admission to or transit through the United States . . . at a port-of-entry." 62 Fed. Reg. 10330. The Government amended that regulation in 1998, defining "arriving alien" as any "applicant for admission coming or attempting to come into the United States at a port-of-entry." 63 Fed. Reg. 19383. This regulation, which remains in place today, see 8 CFR § 1.2 (2025), reflects the view that noncitizens are "arriving" if they are "attempting to come into the United States" by applying for asylum "at a port-of-entry," regardless of whether they have stepped foot across the border.

Page Proof Pending Publication

2

The majority's interpretation of "arrives in the United States" makes no sense. To start, the majority ignores that "arrival" and "arriving" in the immigration context have never focused on the precise location of a noncitizen's feet. Instead, the majority concentrates on everyday examples of

the phrase "arrives in." *Ante*, at 268–270. The majority is right that its chosen examples are naturally read to require the person or item to be physically inside the relevant space. The terms "arriving in" and "arrives in," however, do not always work that way. For example, a train conductor's announcement, "We are arriving in Penn Station," might mean that the train is inside the station or merely that it has started slowing down half a mile away. If someone said, "Call me when you arrive in Washington, D. C.," it would be logical to call them once you have landed at DCA Airport, just across the river in Virginia. Nor would it be premature to say someone "arrives in" San Francisco while she is still driving on the Golden Gate Bridge. These examples show that the meanings of the phrases "arrives in" and "arriving in" depend on context.

A more fitting example might be the following. Imagine a movie theater policy that states, "Anyone who arrives in the theater may buy a ticket and all moviegoers must have their tickets scanned before entering." If a person walks up to a ticket booth located just outside the theater, it would be unreasonable to think they could not buy a ticket under the policy because they are not "in" the theater yet. Perhaps the policy could have been clearer by using the preposition "at," but everyone understands, from context, what the policy means.

Page Proof Pending Publication

Context leads to the same conclusion here. Requiring an asylum seeker to plant a foot across the border to become an "applicant for admission," § 1225(a)(1), might be plausible looking at the words "arrives in" in a vacuum, but it makes a hash of the statutory scheme overall. Instead, construing text in context, an asylum seeker can be fairly said to "arriv[e] in the United States" for purposes of being an applicant for admission and seeking asylum when she walks up to a port of entry and physically presents herself to an immigration officer who is standing on U. S. soil.

Next, the majority fixates on the preposition "in" and surmises that, had Congress intended to include those who reached the border but have not yet crossed, it would have referred to noncitizens who "'arriv[e] at,'" "'reac[h],'" or are "'at a land border or port of entry.'" *Ante*, at 271 (emphasis deleted). Other nearby provisions, however, demonstrate that Congress uses the phrase "arrives at" interchangeably with "arrives in" to describe this category of "arriving aliens." For instance, § 1231(b)(1)(A), which governs the removal of arriving aliens, uses the terms interchangeably in the same sentence. It specifies that a noncitizen "who arrives at the United States" and is removed upon arrival shall be returned to the country in which the noncitizen "boarded the vessel or aircraft on which the alien arrived in the United States." That provision refers to the same person in both instances, even though one reference uses "at" and the other uses "in." As another example, § 1225(b)(1)(A)(i) provides for expedited removal of a noncitizen "who is arriving in the United States." Yet § 1231(c)(1), which sets out further expedited-removal procedures, prescribes the process for removing "[a]n alien arriving at a port of entry of the United States who is ordered removed . . . under section 1225(b)(1)." As a result, § 1231(c) clearly contemplates that a person who is "arriving at a port of entry of the United States" is also a person who is "arriving in" the United States and removable under § 1225(b)(1). These provisions show that Congress's use of "at" versus "in" is not legally significant.[5]

Page Proof Pending Publication

[5] The Court, too, has used the terms "arrives at" and "at [a] port of entry" to describe the inspection mandate in § 1225(a), albeit in cases that did not address the question presented in this case. For example, in *Department of Homeland Security* v. *Thuraissigiam*, 591 U. S. 103 (2020), the Court summarized §§ 1225(a)(1) and (3) as requiring "[a]n alien who arrives at a 'port of entry,' *i. e.*, a place where an alien may lawfully enter, [to] apply for admission." *Id.*, at 108; see *id.*, at 106 (describing expedited removal as applying to noncitizens "at or near the border attempting to enter this country"). Similarly, in *Jennings* v. *Rodriguez*, 583 U. S. 281

The majority also points to several other statutory provisions that, it argues, more clearly refer to noncitizens who are not yet on U. S. soil and contends that Congress would have used that or similar language if it intended to enact respondents' interpretation. *Ante*, at 270–271 (citing, among others, a provision that authorizes immigration officers to arrest those "attempting to enter" the country, § 1357(a)(2), and another provision that authorizes the Attorney General to deputize state or local law enforcement to respond to an "influx" of noncitizens "arriving off the coast . . . or near a land border," § 1103(a)(10)). True, Congress could have used one of these alternative formulations instead of the "arrives in the United States" clause in §§ 1225(a)(1) and 1158(a)(1), and the question before the Court might have been easier if it had done so. Congress's choice "to use certain language" in one statute, however, "hardly means it was 'foreclose[d] . . . from using different language to accomplish th[e] same goal'" in another statute. *Department of Agriculture Rural Development Rural Housing Service* v. *Kirtz*, 601 U. S. 42, 52 (2024); see *Kirtsaeng* v. *John Wiley & Sons, Inc.*, 568 U. S. 519, 540 (2013) (explaining that there is no "canon of interpretation that forbids interpreting different words used in different parts of the same statute to mean roughly the same thing").

Page Proof Pending Publication

Here, even if Congress could have been clearer in the words that it chose, the statutory context and history plainly show that Congress used the phrase "arrives in the United States" to capture all those in the process of arriving, even before stepping foot onto U. S. soil.

B

Respondents' interpretation is further supported by the "'cardinal principle of statutory construction' that 'a statute

(2018), the Court described the inspection process under §§ 1225(a) and (b) as "begin[ning] at the Nation's borders and ports of entry," *id.*, at 287, and requiring "immigration officials [to] determine whether to admit or remove the many aliens who have arrived at an official 'port of entry' (*e. g.*, an international airport or border crossing)," *id.*, at 285.

ought . . . to be so construed that, if it can be prevented, no clause, sentence, or word shall be superfluous, void, or insignificant.'" *TRW Inc.* v. *Andrews*, 534 U. S. 19, 31 (2001).

Here, both §§1225(a)(1) and 1158(a)(1) set out two categories of individuals: those "present in the United States" and those who "arriv[e] in the United States." §§1158(a)(1), 1225(a)(1). When, like in §§1225(a)(1) and 1158(a)(1), two clauses are set off by a disjunctive "or," this Court has recognized that "'the words it connects are to be given separate meanings'" and that the latter clause should not be construed as "a mere subset of [the] first." *Loughrin* v. *United States*, 573 U. S. 351, 357 (2014).

Respondents' interpretation adheres well to this basic rule. The first category (those "present") captures those who are already inside the United States and the second (those who "arriv[e]") captures those who are in the process of arriving into the United States. On this reading, while some individuals fit both categories, such as a person who lands at an airport and is thus both physically "present in" and "arriv[ing] in the United States," each category also covers some individuals not included in the other.

Page Proof Pending Publication

The majority's interpretation, on the other hand, renders the "arrives in" category entirely superfluous. On its reading, all individuals who "arriv[e] in the United States" have stepped foot onto U. S. territory and are therefore "a mere subset," *ibid.*, of the category of people who are "present in the United States." This interpretation "thus runs afoul of the 'cardinal principle' of interpretation that courts 'must give effect, if possible, to every clause and word of a statute.'" *Id.*, at 358.

The majority rightly does not dispute that its interpretation renders the "arrives in" clause superfluous. *Ante*, at 273–274 (conceding that the "arrives in" clause is a "subset of those who are 'physically present in the United States'").[6] In-

[6] The Government, for its part, resisted this concession and conjured an argument based on the entry-fiction doctrine, which treats certain noncitizens on U. S. territory as not having "entered" as a matter of law. See

stead, it emphasizes that "[t]he anti-surplusage canon is not an iron rule," and cites several instances in which this Court has declined to apply it. *Ante*, at 272–273. It is true that there are circumstances where the anti-surplusage canon is less salient. For example, unlike here, the canon is less helpful when no alternative interpretation avoids surplusage. See *Microsoft Corp.* v. *i4i L. P.*, 564 U. S. 91, 106 (2011) (declining to apply the canon because "no interpretation" of the statute "avoids excess language"); *Freeman* v. *Quicken Loans, Inc.*, 566 U. S. 624, 635 (2012) (similar). Also, unlike here, the canon may be less relevant in a statutory context, like securities law, where this Court has "long recognized considerable overlap" in statutory provisions. *Lorenzo* v. *SEC*, 587 U. S. 71, 80 (2019) (collecting cases).

Thuraissigiam, 591 U. S., at 138–139 (describing the doctrine's relevance in constitutional due process context). The Government posits that courts might have interpreted the clause "present in the United States" to include only noncitizens who are both physically on U. S. soil and had "'"effected an entry"' through lawful admission" and that Congress thus added the "arrives in" clause to capture noncitizens who had not yet legally "entered." Brief for Petitioners 22. The majority rightly declines to adopt this argument. First, it is illogical on its own terms as applied to § 1225(a). Recall that § 1225(a)(1) defines an "applicant for admission" as any noncitizen who is either "present in the United States who has not been admitted or who arrives in the United States." Thus, the Government's reading would mean that a noncitizen "present in the United States who has not been admitted" is somehow one who has already "'"effected an entry"' through lawful admission." Second, "present in the United States" cannot reasonably be interpreted as invoking the entry-fiction doctrine. This Court and the Board of Immigration Appeals have long used the term "presence" to describe a noncitizen's physical location and have distinguished that location-based assessment from whether a noncitizen has effected an "entry," which is a distinct legal term of art. See, *e.g.*, *Leng May Ma* v. *Barber*, 357 U. S. 185, 187 (1958); *Matter of KHC*, 5 I. & N. Dec. 312, 317, and n. 8 (BIA 1953). Finally, even assuming Congress was concerned that "present in the United States" would be interpreted to require "'"entry"' through lawful admission," Brief for Petitioners 22, that notion is already dispelled by another clause in § 1158(a)(1), which clarifies that a noncitizen may apply for asylum "irrespective of such alien's status."

Page Proof Pending Publication

"[T]he canon against surplusage is strongest," however, when, like here, one "interpretation would render superfluous another part of the same statutory scheme." *Marx* v. *General Revenue Corp.*, 568 U. S. 371, 386 (2013); see *United States* v. *Jicarilla Apache Nation*, 564 U. S. 162, 185 (2011) ("'As our cases have noted in the past, we are hesitant to adopt an interpretation of a congressional enactment which renders superfluous another portion of that same law'"); *Mackey* v. *Lanier Collection Agency & Service, Inc.*, 486 U. S. 825, 837, and n. 11 (1988) (collecting cases). It is particularly strange to assume Congress intended the "arrives in" clause to do no work apart from the "present in the United States" clause given that both are not only in the same law but in the very same sentence. See *United States* v. *Taylor*, 596 U. S. 845, 857 (2022) ("[W]e do not lightly assume Congress adopts two separate clauses in the same law to perform the same work"). Nor is it likely that this substantive clause "escaped Congress's notice," as might an "odd word or stray phrase," *Pulsifer*, 601 U. S., at 143, especially given that it is replicated in both §§ 1225(a)(1) and 1158(a)(1).

Page Proof Pending Publication

The majority proffers a hypothetical reason why Congress adopted the "arrives in" clause even though it is entirely superfluous. It posits that because Congress created expedited removal in IIRIRA, it likely added the "arrives in" clause in §§ 1225(a)(1) and 1158(a)(1) to "mak[e] it clear that arriving aliens are subject to expedited removal but that even those aliens may apply for asylum." *Ante*, at 274–275.

It is difficult to credit this account. Setting aside the "arrives in" clause, both §§ 1225(b) and 1158(a)(1) already make abundantly clear that arriving noncitizens subject to expedited removal may still apply for asylum. Section 1225(b), as the majority acknowledges, *ante*, at 263–264, sets out the detailed expedited-removal process, which specifies that if a noncitizen "indicates either an intention to apply for asylum under section 1158 of this title or a fear of persecution" during "screening" for expedited removal, the officer must "refer the alien for an interview by an asylum officer."

§§ 1225(b)(1)(A)(ii), (B)(i)–(ii). Section 1158(a), in turn, cross-references the expedited-removal provision, stating that any eligible noncitizen "may apply for asylum in accordance with this section or, where applicable, section 1225(b) of this title." Even absent the "arrives in" clause, these statutes could hardly be clearer that those subject to expedited removal may still apply for asylum, thus negating the majority's explanation for Congress's inclusion of the "arrives in" clause.

In the end, the majority does get one thing right: "Arriving" noncitizens do belong to a distinct legal subcategory. This subcategory is best understood to include noncitizens who walk up to ports of entry but have not yet stepped foot on U. S. territory. See *supra*, at 292–298. The better interpretation is thus that Congress used the term "arrives in the United States" in §§ 1225(a)(1) and 1158(a)(1) to capture this group of people because the "present in the United States" clause does not already capture them. Only this construction "give[s] effect . . . to every clause" of these statutes, *Loughrin*, 573 U. S., at 358, and keeps them both logically and historically consistent.[7]

Page Proof Pending Publication

C

The complete superfluity of the majority's construction might be understandable if there were reason to believe that doing so avoided anomalous results or otherwise conformed with the purpose of these statutes. The majority's interpretation, however, does neither.

1

This Court has previously recognized that immigration statutes and procedures should not be construed to "create a perverse incentive to enter at an unlawful rather than a lawful location." *Department of Homeland Security* v.

[7] The legislative history of the relevant provisions will be discussed further below. See *infra*, at 307–315.

Thuraissigiam, 591 U. S. 103, 140 (2020). Yet, the majority's construction does exactly that: It tells asylum seekers that they may apply for asylum if they can make it across the border illegally but that they cannot apply if they patiently wait at the edge of a port of entry.

The majority contends that this concern is "overstated" because illegal entry carries other adverse legal consequences that should discourage asylum seekers. See *ante*, at 277–278 (noting criminal liability and ineligibility for certain state and local public benefits). The point, however, is not that illegal entry always produces a net windfall for asylum seekers; it is that Congress was unlikely to devise a system in which asylum is available to those who unlawfully set foot over the border, but not to those who attempt to comply with the law and are physically blocked from entering at the threshold of a port of entry by an immigration officer.

It is also the unfortunate reality that, despite the adverse consequences the majority cites, many asylum seekers are desperate enough to flee the persecution they face in their home countries that they are willing to run significant risks to apply for asylum. Far from "overstated," this counterproductive incentive structure in fact bore out under the metering policy. In 2018, OIG reported that the policy's "unintended consequences" included that it "le[d] some aliens who would otherwise seek legal entry into the United States to cross the border illegally." DHS, Special Review—Initial Observations Regarding Family Separation Issues Under the Zero Tolerance Policy 7 (Sept. 2018), https://www.org.dhs.gov/sites/default/files/assets/2018-10/OIG-18-8-Sep18.pdf (archived at https://perma.cc/LZG3-5FSE); *ibid.* (reporting that a Border Patrol supervisor saw "an increase in illegal entries when aliens [we]re metered at ports of entry"). For example, OIG described that one woman "had been turned away three times by an officer on [a] bridge before deciding to take her chances on illegal entry." *Ibid.* The metering policy also incentivized some asylum seekers to "ru[n] down

Page Proof Pending Publication

the vehicle lanes at ports of entry" in an effort to get across the boundary. App. 214–215; see *id.*, at 215 (describing such incidents at several ports of entry).

There is no need to construe §§ 1225(a) and 1158(a) to produce such anomalous results. See *American Tobacco Co.* v. *Patterson*, 456 U. S. 63, 71 (1982) ("Statutes should be interpreted to avoid . . . unreasonable results whenever possible"). The simple answer is that these statutes mandate inspection of, and allow asylum applications from, all noncitizens who come to a port of entry, even if they have not yet stepped across the border.

2

The majority's interpretation of §§ 1225(a) and 1158(a)(1), moreover, vests limitless discretion in the Executive Branch to abandon its inspection and processing duties. If, as the majority holds, these mandatory statutory duties are not triggered until a noncitizen physically crosses the border, then the Government can easily ignore all these duties by preventing people from stepping across, as it did under the metering policy.

Page Proof Pending Publication

This result is incompatible with the mandatory processes created by these statutes, which only selectively vest discretion in the Executive Branch. See *Galvan* v. *Press*, 347 U. S. 522, 531 (1954) (explaining that "the formulation" of "[p]olicies pertaining to the entry of aliens and their right to remain here" is "entrusted exclusively to Congress"). In describing the Executive Branch's duties at the border, the inspection and expedited-removal provisions repeatedly use the word "'shall,'" thus creating "'discretionless obligations.'" *National Assn. of Home Builders* v. *Defenders of Wildlife*, 551 U. S. 644, 661 (2007). All noncitizens "who are applicants for admission or otherwise seeking admission or readmission to or transit through the United States *shall* be inspected by immigration officers." § 1225(a)(3) (emphasis added). If a noncitizen who is being inspected through the

expedited-removal process "indicates either an intention to apply for asylum under section 1158 . . . or a fear of persecution," the "officer *shall* refer the alien for an interview by an asylum officer," § 1225(b)(1)(A)(ii) (emphasis added); the "asylum officer *shall* conduct interviews . . . either at a port of entry or at such other place designated by the Attorney General," § 1225(b)(1)(B)(i) (emphasis added); and, if the asylum officer determines that the noncitizen "has a credible fear of persecution," the noncitizen "*shall* be detained for further consideration of the application for asylum," § 1225(b)(1)(B)(ii) (emphasis added).

These provisions vest discretion in the Executive Branch at certain points in the process. For instance, although the Government is required to accept asylum applications from arriving noncitizens, the ultimate decision whether to grant asylum resides with the Government. See § 1158(b)(1)(A) (explaining when the Government "may grant asylum"). Similarly, although the Government must inspect arriving noncitizens, "the Attorney General may return" a noncitizen "who is arriving on land (whether or not at a designated port of arrival) from a foreign territory contiguous to the United States" while their removal proceedings are "pending." § 1225(b)(2)(C). Taken together, these provisions spell out a detailed set of mandatory procedures that selectively vests some discretion in the Government but only when they specifically say so.

Page Proof Pending Publication

Yet the majority's construction allows immigration officers to circumvent this detailed statutory scheme by simply preventing noncitizens from stepping across the border. So long as officers turn noncitizens back, they need not inspect them, nor assess their eligibility for expedited removal, nor consider whether they indicate an intention to apply for asylum or a fear of persecution, nor refer them to an asylum officer. Sections 1225(a) and 1158(a)(1) should not be construed to "open a loophole [that] allow[s] easy evasion of the statutory provision[s'] basic purpose." *County of Maui* v.

Hawaii Wildlife Fund, 590 U. S. 165, 180 (2020); see *Whitman* v. *American Trucking Assns., Inc.*, 531 U. S. 457, 485 (2001) (explaining that statutes should not be construed "in a way that completely nullifies textually applicable provisions meant to limit [the Government's] discretion").

The majority responds by claiming that the metering policy "merely delayed entry . . . as a way of improving a situation that both interfered with the proper conduct of inspection and created unsanitary, inhumane, and sometimes dangerous conditions at ports of entry." *Ante*, at 278. As a factual matter, that is untrue. See *supra*, at 287–289. Under the metering policy, noncitizens were often turned away "regardless of the port's actual capacity and capability," App. 397, 408, without being given future appointments. Border officials also failed to take "any steps to keep track of who was being turned away or otherwise allo[w] them to open asylum applications." 138 F. 4th, at 1122. That is why the Ninth Circuit held that the metering policy constituted withholding of its mandatory duties, not mere "dela[y]," which is permissible so long as the delay is not "unreasonabl[e]." 5 U. S. C. § 706(1).

Page Proof Pending Publication

More to the point, the majority's recharacterization of the metering policy as a "mere delay" is immaterial to its holding. Neither the majority's holding nor its analysis turns on whether immigration officials block noncitizens from stepping foot onto U. S. soil because of legitimate capacity issues at ports of entry, for other policy reasons, or for no reason at all. Nor does it matter whether a noncitizen's entry was blocked for a few hours, a few months, or forever. As long as the Government successfully prevents noncitizens from crossing the threshold at the border, no matter how long they wait, the majority holds that the Government has no duty to inspect them and no duty to accept their asylum applications.

It is for this same reason that the majority's purported "confiden[ce]" that a future policy that "prevent[s] all poten-

tial arriving asylum applicants from ever reaching the point where an application could be filed . . . would be quickly challenged" is meaningless. *Ante*, at 278. Perhaps such a policy would be challenged, but the rule adopted by the majority today forecloses any chance of success for such a challenge: So long as the noncitizens are kept one inch away from U. S. soil, the majority holds that the Government has no duty to inspect them or accept their asylum applications. Sections 1225(a) and 1158(a)(1) should not be construed to allow the Executive Branch so easily to circumvent the detailed and mandatory set of procedures that Congress has enacted.

III

Respondents' construction also comports best with the history of both statutes. As the majority explains, before IIRIRA's enactment, § 1158(a)(1) covered noncitizens at the border who had not crossed over because it allowed noncitizens who were "'physically present in the United States or at a land border or port of entry'" to apply for asylum. *Ante*, at 271 (quoting § 1158(a) (1994 ed.); emphasis deleted). In the majority's view, Congress's decision in IIRIRA to replace this "at a land border or port of entry" clause with the current "arrives in the United States" clause suggests that Congress intended to change the scope of the provision substantively, eliminating protections for those at the border. *Ante*, at 271 (internal quotation marks omitted).

Page Proof Pending Publication

There is no doubt that "'[w]hen Congress amends legislation,'" this Court ordinarily "'presume[s] it intends the change to have real and substantial effect.'" *Van Buren* v. *United States*, 593 U. S. 374, 393 (2021). This presumption may be overcome, however, if there is evidence to the contrary. See, *e. g.*, *United States* v. *Hansen*, 599 U. S. 762, 777–778 (2023) (declining to attribute broad change in meaning to statutory amendment because statutory history suggested amendment was an effort to "'streamlin[e]'" the statute); *BNSF R. Co.* v. *Loos*, 586 U. S. 310, 320–321 (2019) (rejecting

presumption because legislative history and federal regulations interpreting an amendment showed Congress had no intent to change the statute's substantive meaning); *Wilson*, 503 U. S., at 336–337 (rejecting presumption because statute could not otherwise function sensibly). On the other side of the ledger, "'[i]t is not lightly to be assumed that Congress intended to depart from a long established policy.'" *Id.*, at 336.

Here, a complete understanding of the statutes' history shows both that the immigration laws have long afforded protection to those arriving at the border and that IIRIRA's amendments did not narrow the scope of these provisions to exclude those who are arriving but have not yet crossed.

A

Start with § 1225(a). Since 1917, the inspection mandate has covered all noncitizens who are arriving at ports of the United States. Further, by amending § 1225(a)(1) to apply to those who "arriv[e] in the United States," Congress did not eliminate the inspection requirement for arriving noncitizens who have not yet stepped across the border.

Page Proof Pending Publication

To begin, the inspection mandate has covered those who arrive at ports, regardless of where their feet are, since well before IIRIRA. Starting in 1917, the Immigration Act mandated that "[a]ll aliens arriving at ports of the United States shall be examined by at least two immigrant inspectors." Immigration Act, § 16, 39 Stat. 886; see § 15, *id.*, at 885 ("[U]pon the arrival at a port of the United States of any vessel bringing aliens[,] it shall be the duty of the proper immigration officials to go or to send competent assistants to the vessel and there inspect all such aliens"). This iteration of the inspection mandate did not depend on whether the noncitizen had touched U. S. soil; what mattered was that they were "at" a port. This statute was later amended in 1952, through the passage of the Immigration and Nationality Act (INA). The INA's inspection mandate stated that

the "inspection . . . of aliens . . . seeking admission or readmission to, or the privilege of passing through the United States shall be conducted by immigration officers" and that "[a]ll aliens arriving at ports of the United States shall be examined by one or more immigration officers." § 235(a), 66 Stat. 198–199. Again, the inspection duty was triggered when noncitizens "arriv[ed] at ports," not when they stepped foot onto U. S. territory. *Ibid.*

IIRIRA amended the inspection mandate to apply to those who "arriv[e] in the United States," 8 U. S. C. § 1225(a)(1), but Congress did not eliminate the inspection requirement for arriving noncitizens who have not yet stepped across the border. IIRIRA instead enacted two different substantive changes. First, it specified in §§ 1225(a)(1) and (3) that any noncitizen "present in the United States" qualifies as an "applicant for admission" and that such a noncitizen must also be inspected to have lawful status. Second, it created the expedited-removal process in § 1225(b) to funnel a subset of arriving noncitizens into an accelerated process.

Page Proof Pending Publication

Before IIRIRA, the immigration system was split into "two types of proceedings in which" noncitizens could "be denied the hospitality of the United States: deportation hearings and exclusion hearings." *Landon* v. *Plasencia*, 459 U. S. 21, 25 (1982). Noncitizens seeking to enter the United States, including those at the border who had not stepped foot onto U. S. soil, were placed into exclusion proceedings, while those "already physically in the United States" were subject to deportation hearings. *Ibid.*[8] One incongruity in

[8] Before IIRIRA, noncitizens at the border were placed into exclusion proceedings whether or not they had physically stepped foot onto U. S. soil. *Landon*, 459 U. S., at 23, 28 (noncitizen properly placed in exclusion proceedings when "attempt[ing] to cross the international border . . . at the port of entry"); *Kwong Hai Chew* v. *Colding*, 344 U. S. 590, 595 (1953) (noncitizen placed in exclusion proceedings when aboard a vessel arriving in New York and "not permitted to land"); *id.*, at 596, n. 4 (explaining that exclusion generally meant "preventing someone from entering the United States who is actually outside of the United States"); see also *Sanchez Hernandez*

that system was that deportation proceedings conferred greater procedural protections than exclusion proceedings, which benefited noncitizens who entered illegally without inspection compared to those who showed up legally at ports of entry. See *id.*, at 25–27.

IIRIRA addressed this issue by "abolish[ing] the distinction between exclusion and deportation procedures and creat[ing] a uniform proceeding known as 'removal,'" which would apply to all noncitizens regardless of whether they were arriving or already inside the country. *Vartelas* v. *Holder*, 566 U. S. 257, 262 (2012). To facilitate this transition, "Congress made 'admission' the key word, and defined admission to mean 'the lawful entry of the alien into the United States after inspection and authorization by an immigration officer.'" *Ibid.* It correspondingly modified § 1225(a) by defining an "applicant for admission" as any noncitizen who was either "present in the United States who has not been admitted or who arrives in the United States," § 1225(a)(1), and then adding that inspection is required of all noncitizens "who are applicants for admission or otherwise seeking admission," § 1225(a)(3).

Page Proof Pending Publication

This change, properly contextualized, did not exclude those at the border from being "applicants for admission," but rather "redefin[ed] applicants for admission to include aliens who entered the United States without inspection." 62 Fed. Reg. 10312 (describing IIRIRA's changes). As the Committee Report explained, IIRIRA was designed to ensure that noncitizens "who have entered the United States without inspection" do not "gain equities and privileges in immigration proceedings that are not available to aliens who present themselves for inspection at a port of entry." H. R. Rep. No. 104–469, pt. 1, p. 225 (1996); see *id.*, at 157 (explaining that IIRIRA subjected noncitizens who entered unlawfully

---

v. *Casillas*, 520 F. Supp. 389, 394, n. 2 (SD Tex. 1981) ("presenting oneself at the international bridge" "[o]bviously . . . constitute[s] . . . an application for admission" warranting "an exclusion hearing").

to "the same burden" as someone "seeking to be admitted at a port of entry"); *id.*, at 228 (similar).[9]

In tandem with abolishing the distinction between exclusion and deportation proceedings, IIRIRA enacted a second substantive change to § 1225: the creation of expedited removal in § 1225(b). Section 1225(b) requires that certain arriving noncitizens (such as those without valid travel documents) be inspected and removed through the expedited-removal process. § 1225(b)(1)(A)(i). By enacting § 1225(b), Congress evinced no intent to allow immigration officers to turn away arriving noncitizens who have not stepped onto U. S. soil, *i. e.*, those who would have been subject to exclusion proceedings in the pre-IIRIRA system. Instead, as the Conference Report on IIRIRA explained, Congress funneled a subset of those arriving noncitizens through expedited removal in order to promote faster inspection and removal "while [still] providing an opportunity for such an alien who claims asylum to have the merits of his or her claim promptly assessed." H. R. Conf. Rep. No. 104–828, p. 209 (1996).

Page Proof Pending Publication

Finally, there is no other evidence that Congress amended § 1225(a) to create the "one foot across the border" rule that the majority today imposes. Indeed, the Committee Report described IIRIRA's amended § 1225(a) as applying to any noncitizen who "arrives at the United States, whether or not at a designated port of arrival," H. R. Rep. No. 104–469, at 228, reinforcing again that the majority's fixation on the preposition "in" is misplaced.[10] The federal regulations im-

[9] The amended language in §§ 1225(a) and 1158(a) was originally proposed in H. R. 2202, 104th Cong., 1st Sess., § 1 (1995), and later adopted in IIRIRA.

[10] One of IIRIRA's chief architects, Representative Lamar Smith, corroborated respondents' interpretation in a letter to the Immigration and Naturalization Service when it was adopting regulations to implement IIRIRA in 1997. Smith explained that "[t]he term 'arriving alien' was selected specifically by Congress in order to provide a flexible concept that would include all aliens who are in the process of physical entry past our borders" and that any "alien apprehended at any stage of this process,

plementing IIRIRA understood § 1225 the same way as soon as IIRIRA was passed. See *supra*, at 295. The history of § 1225(a) thus reinforces that it applies to all who are arriving, including those who have not yet crossed the border.

B

The history of the asylum statute, § 1158(a)(1), similarly shows that IIRIRA did not narrow its scope.

Section 1158(a) and the rest of the current asylum system developed in response to the international moral reckoning that followed the Holocaust and World War II. One infamous incident, the voyage of the M. S. *St. Louis*, is emblematic. In 1939, over 900 Jewish refugees attempted to flee persecution in Nazi Germany by setting sail aboard the M. S. *St. Louis*, which was headed to Cuba and the United States.[11] The ship docked in the Havana harbor for days, but the Cuban Government refused to allow the fleeing passengers offboard. The ship then sailed near the Miami coastline, but the U. S. Government also turned them away in part because the immigration laws at the time had strict country quotas and the relevant quota was already filled for that year. The ship sailed to Canada and was again turned away. It eventually returned to Europe. Tragically, over 500 of the refugees that had attempted to flee were trapped in Western Europe under German control, and over 250 of them died during the Holocaust. Most of them were "murdered in the

Page Proof Pending Publication

---

whether attempting to enter, at the point of entry, or just having made entry, should be considered an 'arriving alien.'" Hearing before the Subcommittee on Immigration and Claims of the House Committee on the Judiciary, 105th Cong., 1st Sess., 17–18 (1997) (correspondence from Chairman Smith to Immigration and Naturalization Service (Feb. 3, 1997)). Smith also noted that "'[a]rrival' in this context should not be considered . . . instantaneous but, consistent with common usage, as a process." *Id.*, at 18.

[11] See United States Holocaust Memorial Museum, Voyage of the St. Louis, https://encyclopedia.ushmm.org/content/en/article/voyage-of-the-st-louis (archived at: https://perma.cc/KEC4-VQDC).

killing centers of Auschwitz and Sobibór" and "the rest died in internment camps, in hiding, or attempting to evade the Nazis." S. Ogilvie & S. Miller, Refuge Denied: The *St. Louis* Passengers and the Holocaust 174–175 (2006).

In the wake of World War II, the United States negotiated international treaties with other nations to prevent future incidents like the voyage of the M. S. *St. Louis*. This culminated in the Protocol Relating to the Status of Refugees, Jan. 31, 1967, 19 U. S. T. 6223, T. I. A. S. No. 6577 (1967 Protocol), to which the United States acceded in 1968.[12] The 1967 Protocol, among other things, prohibits "refoulement," meaning that contracting states may not "expel or return ('refouler') a refugee in any manner whatsoever to the frontiers of territories where" she would face persecution based on her protected characteristics. *Id.*, at 6276; see *Sale* v. *Haitian Centers Council, Inc.*, 509 U. S. 155, 181–182 (1993) (explaining that the terms of this nonrefoulement obligation "imply that 'return' means a defensive act of resistance or exclusion at a border").

Page Proof Pending Publication

"[T]o bring United States refugee law into conformance with" the 1967 Protocol, Congress passed the Refugee Act of 1980. *INS* v. *Cardoza-Fonseca*, 480 U. S. 421, 436 (1987). To comply with the nonrefoulement obligation, the Act prohibited the "deport[ation] or return [of] any alien . . . to a country" if that person would be persecuted on account of protected characteristics, a mandatory form of relief called withholding of removal. *Id.*, at 429–430, n. 9 (citing 8 U. S. C. § 1253(h)(1)). It also standardized the asylum-eligibility criteria by enacting § 1158(a)(1), which at the time permitted noncitizens to apply for asylum if they were "physically present in the United States or at a land border or port of entry, irrespective of [their] status." Refugee Act of

[12] The United Nations first established a convention protecting European refugees in the aftermath of World War II. See Convention Relating to the Status of Refugees, July 28, 1951, 189 U. N. T. S. 150. These protections were extended to all refugees in the 1967 Protocol.

1980, § 201(b), 94 Stat. 105. Although these two forms of relief are distinct, they were (and still are) accessible through the same form. See Brief for Petitioners 32; 8 CFR § 208.3(b). Thus, as the plain text stated, the Refugee Act permitted anyone who was "at a land border or port of entry," even if they had not stepped foot onto U. S. soil, to apply for asylum and withholding of removal. See *ante*, at 271 (agreeing on the Refugee Act's reach); see also *INS* v. *Stevic*, 467 U. S. 407, 423, n. 18 (1984) (explaining that § 208 of the Refugee Act applied to noncitizens "either in the United States or at our borders"); *Sale*, 509 U. S., at 177 (agreeing that the Refugee Act "authorize[d] relief for [noncitizens] at the border seeking protection as refugees").[13]

The central question, then, is whether Congress intended to narrow the scope of § 1158(a)(1) to only noncitizens who stepped foot across the border when, in enacting IIRIRA, it amended the Refugee Act's language to the current "arrives in the United States (whether or not at a designated port of arrival . . .)" language. Given that § 1158(a)(1) was originally enacted to comply with the United States' treaty obligations under the 1967 Protocol, it would be strange to construe Congress as abdicating those obligations with this amendment without any affirmative indication that it sought to do so. Congress, after all, "'does not alter the fundamental details' of an existing scheme with 'vague terms' and 'subtle device[s].'" *Hall* v. *Hall*, 584 U. S. 59, 74 (2018). Nor does this Court normally presume that Congress intends to depart from its international obligations. Cf. *Murray* v. *Schooner Charming Betsy*, 2 Cranch 64, 118 (1804) ("[A]n act

Page Proof Pending Publication

[13] In *Sale*, the Court held that neither the withholding of removal statute nor the 1967 Protocol restricted the Government's ability to interdict noncitizens "on the high seas," *i. e.*, "beyond the territorial waters of the United States." 509 U. S., at 159, 177. *Sale*, however, did not address whether, as here, such obligations apply to U. S. immigration officers who are standing in U. S. territory and physically blocking noncitizens from crossing the border.

of Congress ought never to be construed to violate the law of nations if any other possible construction remains").

Instead, the most plausible explanation for this change is that Congress adopted the "arrives in" language in § 1158(a)(1) to conform it to the newly reworked inspection mandate and expedited-removal procedures, both of which now refer to "arriving" noncitizens. See *supra*, at 310–312. The legislative history confirms this understanding. The Committee Report on IIRIRA stated that § 1158(a)(1) continues to allow "any alien who is physically present in the United States or at the border of the United States, regardless of status, . . . to apply for asylum." H. R. Rep. No. 104–469, at 259. The Report evinced no intent by Congress to narrow the scope of § 1158(a)(1) solely to those who cross the border, nor has any party pointed to any other evidence of such an intent. See *id.*, at 173–176 (describing other changes to the asylum system with no mention of narrowing scope of § 1158(a)(1)); *id.*, at 175 (describing intention to "streamlin[e] the asylum process, while ensuring that no alien will be returned to persecution").

Page Proof Pending Publication

* * *

In the end, the histories of §§ 1225(a) and 1158(a)(1) reinforce rather than undermine the understanding that these statutes permit noncitizens in the process of arriving, regardless of where their feet are, to apply for asylum.

IV

Finally, the majority's invocation of the presumption against extraterritoriality to "tip the scale" in its favor is misplaced. *Ante*, at 15. Under this canon of statutory construction, the Court generally construes federal statutes "to have only domestic application" unless Congress clearly says otherwise. *RJR Nabisco, Inc.* v. *European Community*, 579 U. S. 325, 335 (2016). The "basic premise" of the doctrine is that " 'United States law governs domestically but

does not rule the world.'" *Ibid.* It thus reflects the "'commonsense notion that Congress generally legislates with domestic concerns in mind'" and "serves to avoid the international discord that can result when U. S. law is applied to conduct in foreign countries." *Id.*, at 335–336.

Accepting that Congress did not clearly give either § 1225(a) or § 1158(a)(1) an extraterritorial scope, the presumption against extraterritoriality does not advance the majority's case. This Court has held that "[t]he ultimate question regarding permissible domestic application turns on the location of the conduct relevant to the focus" of a statute. *Abitron Austria GmbH* v. *Hetronic Int'l, Inc.*, 600 U. S. 412, 422 (2023). Here, all the relevant conduct is domestic, with CBP officials stationed inside the United States allegedly violating both their statutory duties and asylum seekers' rights by physically blocking individuals at the border from entering and refusing to allow them to apply for asylum. Far from seeking to have U. S. law "'rule the world,'" *RJR Nabisco*, 579 U. S., at 335, respondents' position would simply hold U. S. officials stationed on the U. S. side of the border to their domestic legal obligations.[14] Doing so is fully consistent with the assumption that Congress generally has "'domestic,'" not foreign, "'concerns in mind.'" *Id.*, at 336. Sections 1225(a) and 1158(a)(1) are part of a detailed regula-

Page Proof Pending Publication

[14] This case is thus far afield from other cases in which the presumption against extraterritoriality did significant work. See, *e. g.*, *RJR Nabisco*, 579 U. S., at 332 (addressing alleged scheme involving black-market smuggling between Colombian and Russian traffickers in Europe and South America); *Kiobel* v. *Royal Dutch Petroleum Co.*, 569 U. S. 108, 113 (2013) (addressing attempted use of Alien Tort Statute to challenge alleged atrocities committed by foreign corporations in Nigeria); *Morrison* v. *National Australia Bank Ltd.*, 561 U. S. 247, 251, 262–265 (2010) (addressing attempted use of U. S. securities law to regulate the purchase or sale of securities traded only on foreign exchanges). In all these cases, the Court relied on the presumption to resist the application of domestic law to regulate conduct taking place outside the United States.

tory scheme specifically concerned with, among other things, the processing of noncitizens at the U. S. border.

* * *

Congress passed the Refugee Act in 1980 because it did not want this country to repeat the mistakes of its past. Yet if the refugees on the M. S. *St. Louis* were to walk up to a port of entry on our southern border today, the majority's interpretation would allow immigration officers to refuse even to consider their asylum applications by physically blocking them from stepping foot onto U. S. soil. The majority's interpretation permits the Government to do that even if the refugees complied with all applicable laws and regulations, even if the port had ample capacity to inspect them, and even if turning them back would result in the very persecution from which they narrowly escaped. The consequences of today's decision are predictable. More people will die. More people will attempt to cross the border illegally, and some will make it while others will not. More people will be forced to walk along the U. S.-Mexico border in dangerous conditions, trying to find a port that will inspect them. More people will turn back and be subjected to violence because of something they cannot or should not have to change about themselves, such as their race, religion, nationality, or political opinion. Because this is neither what Congress said nor what its words permit, I respectfully dissent.

Page Proof Pending Publication

JUSTICE JACKSON, dissenting.

Today, the Court issues an advisory opinion on the lawfulness of metering—a policy that has not been in place for almost five years and that the Government has no concrete plans to reinstate. In its rush to greenlight this retired practice, the majority elides serious justiciability concerns and decides legal issues entirely in the abstract. With potential mootness problems and without a factual record es-